

DISPUTE LETTER TO A BUSINESS SCREENING SERVICE UNDER 10 M.R.S. SEC. 1500-CC

THIS IS A LETTER TO A PRIVATE COMPANY. It is not a court pleading, it is not filed anywhere, and no court is involved at this stage.

From: Maria-Alejandra O'Shaughnessy-Whitfield

Reply address: 1188 Upper Notch Crossing Road, Apartment 14B, Presque Isle, Maine 04769-2214

Telephone: (207) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

To (the screening company, at the dispute address it publishes - usually on the report itself or on the company's website; if you cannot find it, get it from the report or the website before sending, and do not guess):

Company:

Dispute mailing address published by the screening company:

.....

.....

RE: DISPUTE OF CRIMINAL HISTORY RECORD INFORMATION UNDER 10 M.R.S. Sec. 1500-CC

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, date of birth 1968-12-31, dispute the completeness and accuracy of criminal history record information about me that your company reported. I am the subject of the record.

2. The report and the record. Your company reported the record in a background-check report, identified as follows (copied from the report itself; nothing on these lines is written for me):

Date of the background-check report the record appeared on:

.....

Reference, file or confirmation number printed on the report, if any:

.....

The record exactly as your company reported it - the charge, the court, the case number and the disposition as printed on the report:

.....

.....

3. The correct status. The record does not accurately reflect the official record maintained by the Maine State Bureau of Identification, in that (write the true status, from your order or pardon):

The correct status of the record - sealed by court order, or the subject of a pardon, as the enclosed document states:

.....

Date of the sealing order or of the pardon:

.....

Court that signed the sealing order, or the authority that granted the pardon:

.....

Anything else about the entry that is wrong - wrong person, wrong charge, wrong outcome, wrong date - as shown by the enclosed official record, if any:

.....

.....

4. What 10 M.R.S. Sec. 1500-CC requires of you. You must investigate this dispute WITHOUT CHARGE; you must review and consider all relevant information I submit and determine whether your record accurately reflects the official record maintained by the State Bureau of Identification (Sec. 1500-CC(1)); you must correct a record that does not accurately reflect the official record; and if the disputed record is found to be sealed or the subject of a pardon, you SHALL PROMPTLY DELETE the record (Sec. 1500-CC(2)). Within thirty days of receiving notice of this dispute you must notify me of the results of your investigation, including whether it was completed or terminated and what records were corrected or deleted (Sec. 1500-CC(4)).

5. Enclosures. Copies of the documents listed on the enclosure checklist accompany this letter. They are copies; I keep the originals.

DATE SIGNATURE

(You sign and date this letter yourself, when you actually send it. Nothing on this page is signed or dated for you.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:track-only:ME:me-screening

ENCLOSURE CHECKLIST

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Enclose COPIES with the dispute letter. Keep every original. This packet never receives, inspects or authenticates any of these documents.

ENCLOSURE ONE - THE DOCUMENT THE WHOLE LETTER TURNS ON. A copy of the court's written sealing order, or of the pardon. Obtained from the office of the court that signed the sealing order, or from the Department of Corrections and the Governor's office for a pardon. Sec. 1500-CC(2) makes prompt deletion mandatory where the disputed record is found to be sealed or the subject of a pardon, so this document must be in hand before the letter is sent.

ENCLOSURE TWO - THE STATUTORY BENCHMARK, STRONGLY ADVISED. A copy of your own official Maine criminal history record from the Maine State Police, State Bureau of Identification. Sec. 1500-CC(1) directs the screening service to compare its record against the official record maintained by the Bureau, so the Bureau record is the benchmark the statute names. It is effectively necessary wherever the vendor's entry is wrong on facts other than sealing status, and enclosing it also protects against a frivolousness determination under Sec. 1500-CC(3), which lets a service terminate an investigation where the subject fails to provide sufficient information.

Route: obligation:track-only:ME:me-screening

PARTICIPANT INSTRUCTIONS

This packet is prepared for getting a sealed or pardoned Maine record corrected or deleted from a private background-check company's database under 10 M.R.S. Sec. 1500-CC.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHAT THIS ROUTE IS, AND IS NOT. 10 M.R.S. c. 239 binds BUSINESS SCREENING SERVICES only - private companies regularly in the business of collecting, assembling, evaluating or disseminating Maine criminal history record information about specific individuals for a fee (Sec. 1500-AA), excluding government entities and the news media. It does not reach the State Bureau of Identification record, the court record, or any criminal justice agency. If the entity that reported your record is arguably not a business screening service, stop and get advice before sending.

WHAT YOU DO, IN ORDER.

STEP ONE. Identify the company and confirm it fits the Sec. 1500-AA definition.

STEP TWO. Find the company's published dispute address - usually on the report itself or on the company's website.

STEP THREE. Obtain the sealing order or pardon copy, and your Bureau record where advisable, per the enclosure checklist.

STEP FOUR. Fill in every dotted blank on the letter from the report and the enclosed documents, sign and date it, and send it WITH copies of the enclosures, in a way that lets you evidence receipt - the thirty-day clock runs from the company's RECEIPT of the dispute.

STEP FIVE. Calendar thirty days from the date the company received the letter.

STEP SIX. Read the response. Three outcomes are possible: correction; deletion (mandatory and prompt where the record is found sealed or pardoned); or a determination that the dispute is frivolous, which the company may make only with specific reasons stated and a description of the information it needs (Sec. 1500-CC(3)).

MONEY. The investigation is WITHOUT CHARGE - Sec. 1500-CC requires it. You may pay a Bureau fee for your own criminal history record and a court-office copy fee for the sealing order; neither is a fee for this dispute.

A COMPLIANT REPORT'S OWN NOTICE. A service disseminating records collected on or after 1 July 2010 must include the collection date and a notice that the information may include records that have since been sealed or become inaccessible (Sec. 1500-DD).

NO TIMELINE PROMISES. Chapter 239 took effect on 29 July 2026 and has no practice history. This packet does not promise deletion timelines beyond what the statute says.

WHEN TO STOP AND GET A LAWYER INSTEAD.

- The company does not respond within thirty days of receiving the dispute.
- The company declares the dispute frivolous and you disagree.
- You want to pursue the statutory remedy - \$1,000 or actual damages, costs and fees under Sec. 1500-EE(3). That is litigation, it is outside self-help, and this packet neither pleads nor threatens it.

- The dispute involves a national vendor and a federal Fair Credit Reporting Act claim may be stronger or may overlap - that comparison is a lawyer's analysis.
- The record was never sealed and you are disputing accuracy in a way that requires establishing what the true record is.
- The entity is arguably not a business screening service within Sec. 1500-AA, or is a government entity or the news media.

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